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VIA EMAIL ONLY

**Privileged and Confidential
Attorney Work Product**

Robert J. Allan
Tattler Media LLC
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RE: Transmission of Website Policies for Tattler Media

Dear Robert,

This correspondence provides information and guidance on implementing your website terms and policies, complying with the DMCA, and advice regarding enforcement of your content prohibitions. This correspondence is protected by the attorney/client privilege and should not be shared with third parties.

I. Implementation of Website Policies

We have attached drafts of the requested legal documents and memoranda for your review. Kindly review the attached drafts to ensure they conform to your intended policies and procedures. We look forward to discussing these issues and finalizing the drafts.

Throughout these drafts, you will see language that says "by emailing us at [tattlermedia\[at\]gmail\[dot\].com](mailto:tattlermedia[at]gmail[dot].com)" or something similar. You may either replace this with a support email address or, if you prefer to use a contact form instead, use with the following language "by filling out our **[Link: Contact Form]**." However, the references to [tattlermedia\[at\]gmail\[dot\].com](mailto:tattlermedia[at]gmail[dot].com) in the State-Specific section of the Privacy Policy must be an email address under state law.

Terms and Conditions

The attached Terms and Conditions agreement forms the relationship between your company and the users of Tattler Media. You should request agreement to the Terms and Conditions using the

instructions provided below, before users access any portion of the websites beyond the home pages, and when creating an account.

If you send promotional emails to your users, a separate authorization (such as a check box) should be obtained before sending such messages. If a check box is used to obtain this authorization, it should not be prechecked.

Privacy Policy

The Privacy Policy is designed to comply with U.S. law and is acceptable for U.S. users.

We assume you do not collect the following information through the websites:

postal, billing, and shipping address; geolocation data; telephone number; social security number or taxpayer ID number; driver's license, passport, or other identification card number; credit card or banking information; medical information or health insurance number; order history; personal property records; genetic information; biometric information; audio, electronic, visual, thermal, olfactory, or similar information; employment information; education information; characteristics of protected classifications, including, but not limited to, racial or ethnic origin, religious beliefs, mental or physical health diagnosis, sexuality, or citizenship or immigration status; and inferences drawn from any of this information about your preferences, characteristics, psychological trends, predispositions, behavior, attitudes, intelligence, abilities, or aptitudes

If you do collect any of the information above, or if you do not collect any of the information listed in Section 2 of the Privacy Policy, please let us know and we will update the Privacy Policy accordingly.

The Privacy Policy was drafted under the assumption that the following statements do NOT apply to you:

1. You disclose personal information to third parties for direct marketing purposes.
2. You have an annual gross revenue in excess of \$25 million.
3. You sell personal information.
4. You collect, control, or process personal information from 10,000 or more residents or households in any particular state.
5. You derive 50 percent or more of your annual revenues from selling advertisements.
6. You or your contractors collect any biometric information from users, such as if you or your contractors use biometrics to compare a selfie to a picture ID for age or identity verification purposes.

If any of the above APPLY to you now or in the future, please inform us immediately so we can make revisions to this document.

Ordinarily we recommend that you retain all personal information and content for at least 5 years from the termination date of the user's account. While you are free to implement your own data retention policies for any particular category of personal information, preservation of personal information and content for the full period can be beneficial in the event of a future legal dispute. Should you receive a request to delete personal information, please contact us to determine how to best proceed in accordance with the applicable state privacy law.

Privacy Rights in Nevada

You are required to make certain disclosures in your Privacy Policy to comply with Nevada's privacy law. While this area of the law remains untested, we believe that our draft of the Privacy Policy complies with Nevada's law. Further, you must allow Nevada residents to submit requests to prohibit the sale of their personal information. Although we understand that you do not sell personal information at this time, you should log any requests that you receive from Nevada residents and comply with such requests if you begin selling personal information at any point in the future. You must respond to such requests within 60 days, though this deadline may be extended by 30 days, if reasonably necessary, and if you provide the requestor notice of the extension. If you fail to make the required disclosures, or if you fail to comply with a request not to sell personal information, the Attorney General of Nevada may institute an appropriate legal proceeding against you to seek a temporary or permanent injunction or a civil penalty not to exceed \$5,000 for each violation.

Privacy Rights in Texas and Nebraska

You must provide all residents of Texas and Nebraska with the right to request, no more than twice per year, (i) confirmation of whether you process their personal information, (ii) the ability to correct inaccuracies in their personal information, (iii) the ability to delete their personal information, and (iv) the ability to obtain a portable, digital copy of their personal information.¹

We assume you do not (i) collect personal information about residents of Texas and Nebraska under the age of thirteen (13), (ii) engage in targeted advertising, (iii) sell personal information, or (iv) use personal information for profiling in furtherance of a decision that results in the provision or denial of (a) financial lending services, (b) housing, insurance, or health care services, (c) education enrollment, (d) employment opportunities, (e) criminal justice, or (f) access to basic necessities such as food or water. If you do engage in any of these behaviors, please let us know and we will update your Privacy Policy accordingly and provide further guidance on these activities.

You must respond to all other portions of the requests, free of charge, within forty-five (45) days. However, you may extend this deadline to ninety (90) days by providing the resident with notice that an extension is needed and the reason the extension is needed. This notice must be provided within the initial forty-five (45) day deadline.

¹ In Nebraska, you only need to provide of copy of data processed by "automated means," not any data processed by "manual means."

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You may deny the request or charge a reasonable fee to cover administrative costs if the request is manifestly unfounded, excessive, or repetitive. You may also deny any request (regardless of whether it is manifestly unfounded, excessive, or repetitive) if you are unable, using commercially reasonable means, to verify that the person making the request is the same person to whom the personal information relates.

If you deny any request, you must provide the resident of Texas or Nebraska with a process for appealing the denial within a reasonable period of time and inform the resident in writing of any action taken or not taken in response to the appeal within sixty (60) days. In Texas, this must include an explanation of the reason for the continued denial and a link to the Attorney General's [Consumer Complaint Portal](#). In Nebraska, this must include an explanation of the reason for the continued denial and a link to the Attorney General's [Constituent Complaint Form](#).

You must not discriminate against any resident of Texas or Nebraska for making a request. For example, you cannot suspend or terminate a user's account in response to a request, charge a user higher rates if they make a request, or provide a different level of services if a user makes a request.

If you share personal information with any third party, such as an age verification service, your contract with that third party must include (i) clear instructions for processing the data, (ii) the nature and purpose of the processing, (iii) the type of personal information, (iv) the duration of the processing, (v) the rights and obligations of both parties, and (vi) a requirement that the processor shall (a) ensure the confidentiality of the personal information, (b) delete, return, or make available all personal information upon your request, unless retention is required by law, and (c) only engage a subcontractor according to the requirements therein.

You must conduct a data protection assessment ("DPA") if you collect (i) personal data revealing racial or ethnic origin, religious beliefs, mental or physical health diagnosis, sexuality, citizenship, or immigration status, (ii) genetic or biometric data for the purpose of uniquely identifying an individual, (iii) personal information from children under the age of thirteen (13), or (iv) precise geolocation data with an accuracy within a radius of 1,750 feet. This assessment must identify the benefits to you, the user, other stakeholders, and the public from processing the personal information against the potential risks to the user as mitigated by safeguards employed to reduce those risks. We assume that the DPA obligation does not apply to you, however we can assist you in conducting the DPA, if necessary in the future.

The Attorneys General of both states may issue a civil investigative demand to access this assessment. After providing notice of a thirty (30) day cure period in writing, the Attorney General may (i) issue a civil penalty of up to seven thousand five hundred dollars (\$7,500) for each violation, (ii) restrain or enjoin continued violations, (iii) recover reasonable attorney's fees and investigative expenses.

These laws do not create a private right of action in Texas or Nebraska.

Acceptance of and Changes to the Terms and Conditions and Privacy Policy

As noted above, the Terms and Conditions and Privacy Policy should be accepted before the user accesses any portion of Tattler Media beyond the home page. To ensure you adequately bind your users to, or provide the necessary notice to, these important agreements, we recommend linking acceptance of the Terms and Conditions and acknowledgement of the Privacy Policy to an age verification message that the user sees when first accessing Tattler Media such as: "I am at least 18 years of age and accept the [\[Link: Terms and Conditions\]](#) and acknowledge the [\[Link: Privacy Policy\]](#)." The hyperlinks for each document should be underlined and in a contrasting color. A cookie can be set to allow repeated access by the same user without agreeing each new visit. The date, time, and IP address associated with each acceptance should be recorded for each user when registering for an account, if needed in future legal proceedings. Links to these agreements should also be posted in the footer.

If you make any material change to the Terms and Conditions or the Privacy Policy, you must provide notice to your users of such changes and require them to accept the updated agreement with an affirmative act such as clicking an "I agree" button accompanied by a summary of the material changes and a link to the updated agreements that is underlined and in a contrasting color. The date, time, and IP address should be recorded each time any user agrees to an updated version of either agreement.

II. DMCA Compliance

The following instructions relate to complying with the Digital Millennium Copyright Act ("DMCA") by posting and implementing various DMCA Safe Harbor policies and procedures. We prepared the necessary legal documentation to address DMCA Safe Harbor issues, and to enable us to serve as your designated DMCA agent. Please note that neither the posting of any document prepared by our firm, nor compliance with these recommendations, will guarantee that any court will determine that your company qualifies for DMCA Safe Harbor protection in the event of any copyright infringement claim.

DMCA Notice & Takedown Policy

The attached DMCA Notice & Takedown Policy must be posted in a conspicuous manner on Tattler Media, and a link should be included in the footer that reads "DMCA Info," "DMCA Notice," "Report Copyright Infringement," or a similar variation.

Repeat Infringer Policy

In connection with DMCA compliance and Safe Harbor, it is also necessary to adopt a formal Repeat Infringer Policy ("RIP") in writing that describes the circumstances under which you will disable access to allegedly infringing material. We are transmitting a draft RIP for your consideration. The RIP should not be posted on Tattler Media, but should be finalized, dated, and kept with your internal business records per the instructions below. The adoption and implementation of the RIP, along with notification of the adoption of the RIP to your users, are requirements under the DMCA Safe Harbor provisions. The RIP needs to be available to your

users, as described below. Thus far, the courts have not provided specific guidance as to how many infringements constitute “repeat infringement” but the fewer the better, in this regard. We have drafted the RIP to address total infringements from any copyright owner. All calculations are measured during a calendar year. Should you have any concerns regarding the suggested numbers, we are available to discuss adjustment of the timing and numbers prior to formal implementation of the RIP.

User Notifications of RIP

There are several ways to notify users of the RIP as required by the DMCA. The most cautious approach would be to transmit the RIP to all users by email, or by posting the RIP on Tattler Media. A more practical method – the sufficiency of which has not yet been fully tested in a court of law – is to simply make the RIP *available* to users upon request. This is commonly done by notifying users of the existence and availability of the RIP in your Terms and Conditions. The RIP is intended to apply only to your users, and not the online public in general. The DMCA requires that you inform your users of the RIP, but this notification requirement does not necessarily include the world at large. There may be reasons not to publish your current Repeat Infringer Policy online for others to see. For example, third party claimants may attempt to use the provisions of your RIP against you in an infringement case. Also, you should be able to change your RIP without being forced to modify your online agreements every time. Finally, broad public notification of your RIP could provide evidence to potential claimants that would otherwise be publicly unavailable. Assuming you want to keep the RIP internal, we have included the appropriate user notification in your Terms and Conditions.

By carefully adopting and implementing the policies referenced above, you may be able to take advantage of significant defenses to any legal claim of copyright infringement based on material uploaded by your users. Both documents may act as final drafts, therefore, the DMCA Notice & Takedown Policy is ready to be posted on Tattler Media and the RIP may be dated and saved in your business records. However, should you notice any issues during your review of the documents, please let us know and we will edit the documents accordingly.

DMCA/Repeat Infringer Log

It is also important that you keep track of DMCA Notices internally. As your DMCA Agent, we will not have any records of which content has been removed, so it is important to calculate the number of infringements per year for each user, and to maintain these records in such a way so that they can be produced in a legal proceeding if necessary. To determine the legality of any Safe Harbor argument, courts often focus on proper implementation of the RIP.

III. Content Moderation Guidelines

Content moderation is an integral part of operating a website that allows users to post content. While Tattler Media has certain legal protections under U.S. laws for the content posted by users, such as “Section 230 immunity” and the DMCA Safe Harbor, such protections are not all-encompassing. Your Terms and Conditions prohibit a large variety of illegal content; however, you may also choose to prohibit certain categories of content like hate speech which are legally

protected but otherwise objectionable. You may even choose to take limited action against content which otherwise complies with your Terms and Conditions but may be objectionable to some users or raise other public relations implications.

Content moderation involves two primary activities: (i) proactively monitoring Tattler Media for illegal content, violations of your Terms and Conditions, and potentially objectionable content, and (ii) responding to reports of violations with a thorough investigation. If you discover prohibited content, you should take appropriate remedial action immediately and log the user, date and time, type of response taken, and reason for such action in your records. As your attorneys, we will not have any records of these actions.

Examples of Prohibited Content

The following types of content are prohibited on Tattler Media pursuant to your Terms and Conditions. We would be happy to provide a more detailed description or provide specific examples of any category, if necessary. This list is not exhaustive, and you may choose to add additional categories to your Terms and Conditions in the future. In the meantime, we have included a catch-all provision that allows you to remove any content that you, in your sole discretion, deem “inappropriate.”

- Sexual content
- Illegal or illicit drugs
- Violence, self-harm, or suicide
- Pirated content
- Confidential, private, privileged info
- Names or likenesses of celebrities
- Content impersonating any third party
- Defamation
- Threats, abuse, harassment, extortion
- Content encouraging criminal conduct
- Hate speech
- Trolling
- Spam
- Emojis as code words for the above
- Otherwise attempting to avoid and/or break the above rules

Blocking Content

Blocking content is a preemptive measure which scans content as users upload it and prevents prohibited content from ever publicly appearing on Tattler Media. You may also develop a banned and flagged words list. Such lists are highly dependent on each operator’s specific business model and risk tolerance. Language loosely associated with prohibited content can be flagged for human review by your moderators. On the other hand, words, abbreviations, and emojis directly associated with illegal content such as child sexual abuse materials, commercial sex acts, or threats of violence may be banned entirely. Banned words should also be disabled as search terms, so that no results will be returned if a user inputs those terms in your search tool. Similarly, you should avoid using technology that autogenerates URLs based on the search history of your users. Doing so may cause disabled search terms to appear on Google and other search engines, creating the appearance that illegal content can be found on your site, even though no such content exists.

Removing Content

You may also discover prohibited content through the normal course of business as you navigate Tattler Media, such as by (i) reviewing user-generated content such as profiles, posts, comments, pictures, videos, etc., and (ii) reviewing materials such as post tags or trending topics which are autogenerated by Tattler Media in response to popular user content. Other methods of discovering prohibited content may be more active or invasive. For example, you may monitor private chats between users or engage with users anonymously in an attempt to test compliance with your rules and policies. If you discover prohibited content, you should remove it from Tattler Media immediately and log the user, date and time, and reason for removal in your records.

Warning Users

In cases of minor violations of the Terms and Conditions, you may inform the user of the violation, direct the user to the relevant provision of your Terms and Conditions, and warn against repeated action.

Banning Users

In cases where a user has engaged in multiple minor violations of the Terms and Conditions, you may temporarily suspend the user. In cases where a user has engaged in a single egregious violation or in repeated major violations of the Terms and Conditions, you should immediately and permanently terminate the user's account and prohibit future access to the services. This is sometimes referred to as "de-platforming" a user.

Preservation / Deletion of Prohibited Content

Ordinarily, prohibited content can be permanently deleted in your discretion, and consistent with your data retention policies. However, there are some exceptions to this general rule:

- 1) Any user content that appears to depict child sexual abuse materials should be disabled and preserved in a non-public file for at least ninety (90) days after reporting the content to the NCMEC Cyber Tipline. In the rare event that this occurs, our firm can provide more detailed guidance.
- 2) Any content which is subject to a subpoena, court order, discovery request, warrant, or legal preservation request should be preserved indefinitely.
- 3) Any content that you reasonably believe may be the subject of a future legal dispute should be preserved for an appropriate period of time to determine whether a formal dispute arises.
- 4) Any content disabled in response to a DMCA Notice should be preserved for a reasonable time to allow a counter-notification to be filed. If a counter-notification is received, it should be forwarded to the original complainant and the content should be replaced within ten to fourteen (10-14) business days unless a lawsuit has been filed regarding the alleged infringement.
- 5) Any content which is subject to a Litigation Hold Notice sent by your attorneys should be preserved in accordance with the instructions provided.

IV. Limitations

This correspondence is not intended to provide exhaustive advice on all legal issues that may be generated by operating a local newspaper and associated interactive website. Specifically, our firm does not provide advice on tax, banking, or financial issues, or on the laws of foreign jurisdictions. We encourage you to seek advice on such matters from the appropriate professionals.

We look forward to answering any questions on these issues at your convenience.

Sincerely,



Lawrence G. Walters
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LGW/ja
Encls.